

Court No. - 3

Case :- WRIT - C No. - 6037 of 2024

Petitioner :- Balram Mishra

Respondent :- State Of U.P. Thru. Prin. Secy. Energy
Energy Deptt. Lko. And Others

Counsel for Petitioner :- Pradeep Kumar
Srivastava, Jyotsana Srivastava

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Manish Kumar, J.

1. Heard learned counsel for the petitioner, learned counsel for the respondent as well as learned State Counsel.

2. This writ petition has been preferred with the following prayer:-

'Issue a writ, order or direction in the nature of Mandamus commanding the opposite parties particularly opposite party no. 2 & 3 to issue a fresh electricity connection in the name of petitioner which is pending since 17.08.2022.'

3. Ms. Aprajita Bansal, learned counsel for respondent prays for and is granted a weeks' time to seek instructions in the matter.

4. List this case on **19.07.2024, as fresh.**

Order Date :- 12.7.2024

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Respondent :- State Of U.P. Thru. Prin. Secy. Energy Deptt. Lko.
And Others

Counsel for Petitioner :- Pradeep Kumar Srivastava, Jyotsana Srivastava

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Shree Prakash Singh, J.

Heard learned counsel for the petitioner, learned Standing Counsel, who appears on behalf of the State-respondent and Ms. Aprajita Bansal, learned counsel, who appears on behalf of the respondent nos. 2 & 3.

This writ petition has been filed with the following main prayer :-

"I) issue a writ, order or direction in the nature of Mandamus commanding the opposite parties particularly Opposite Party No. 2 & 3 to issue a fresh electricity connection in the name of petitioner which is pending since 17.08.2022 (Contained as Annexure No. 1), in the interest of justice."

Ms. Aprajita Bansal, on the basis of instructions, had informed this court earlier that there were dues on the premises, which had to be cleared off first before any electricity connection can be given. In the case of the petitioner, he is a tenant and he wants a new electricity connection and without clearing off the dues of the premises, no new connection can be given, but, the instalments facility can be availed of by the petitioner under paragraph 6.14 of the Electricity Supply Code, 2005 after completing all the formalities, for which, he can make an application to the Executive Engineer of the Distribution Division concerned.

This writ petition is **disposed of** with a direction to the petitioner to make an application to the respondent no. 2 within a week from today. If such an application is made under paragraph 6.14 of the Electricity Supply Code, 2005, the respondent no. 2 shall consider the same sympathetically and

pass an appropriate order thereon within two weeks thereafter.

Order Date :- 19.7.2024
AKS